

OTC MARKETS GROUP INC.

A Delaware Corporation

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Federal EIN: 13-3941069

NAICS: 523210

SIC Code: 6289

Supplemental Exhibit 3.15 to:

2022 Annual Report

For the period ended December 31, 2022

ISSUER'S EQUITY SECURITIES

COMMON STOCK

Class A Common Stock

\$0.01 Par Value Per Share

17,000,000 Shares Authorized

11,918,229 Shares Outstanding as of February 28, 2023

OTCQX: OTCM

OTC Markets Group Inc. is responsible for the content of this Annual Report. The securities described in this document are not registered with, and the information contained in this report has not been filed with, or approved by, the U.S. Securities and Exchange Commission.

ASSET PURCHASE AGREEMENT
BY AND AMONG
OTC MARKETS GROUP INC.,
EDGAR ONLINE LLC
AND
DONNELLEY FINANCIAL, LLC
DATED AS OF NOVEMBER 9, 2022

This ASSET PURCHASE AGREEMENT (this “**Agreement**”) is made and entered into as of November 9, 2022, by and among Donnelley Financial, LLC, a Delaware limited liability company (“**Seller**”), EDGAR Online LLC, a Delaware limited liability company (“**Buyer**”), and OTC Markets Group Inc., a Delaware corporation (“**Parent**”).

RECITALS

- A. Seller operates the EDGAR® Online business, including the EDGAR® Pro product, which provides customers with Securities and Exchange Commission (SEC) filings, OTC disclosure and related capital markets data (the “**Business**”);
- B. Buyer desires to purchase from Seller, and Seller desires to sell to Buyer the identified assets primarily used in the Business, and Buyer desires to assume from Seller, and Seller desires to assign to Buyer, certain liabilities and obligations of Seller with respect to the operation of the Business, in each case for consideration and in accordance with the terms and conditions of this Agreement;
- C. Buyer and Seller intend to enter into a Transition Services Agreement pursuant to which Seller will provide, immediately after Closing, support and transition services to Buyer necessary to continue to operate the Business, including continued operation of the Business on the Seller’s technology platform, and assistance to Buyer in transitioning such services to Buyer’s platforms by June 1, 2023.
- D. Buyer and Seller desire to enter into this Agreement for the purpose of setting forth their mutual understandings and agreements with respect to the foregoing; and
- E. Capitalized terms used but not defined in the context of the Section in which such terms first appear shall have the meanings set forth in Section 6.10.

NOW, THEREFORE, in consideration of the mutual representations, warranties, covenants, and agreements contained in this Agreement, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE I. PURCHASE AND SALE OF ASSETS.

Section 1.1. Purchase and Sale of Assets. Upon the terms and subject to the conditions set forth in this Agreement, at the Closing, Seller hereby sells, transfers, assigns, conveys, and delivers to Buyer, and Buyer hereby purchases and acquires from Seller, all of the Acquired Assets, free and clear of all liens other than Permitted Liens. “**Acquired Assets**” means all right, title, and interest in, to all of the following assets of Seller.

- (a) (i) the tangible personal property listed on Section 1.1(a) of the Disclosure Schedule; provided, that, the transfer of all such tangible property that is subject to any lease agreement identified on Section 1.1(a) of the Disclosure Schedule shall be subject to Buyer’s assumption of such lease agreement and (ii) all other tangible personal property of Seller primarily used in the Business;
- (b) (i) all Intellectual Property set forth on Section 1.1(b) of the Disclosure Schedule and (ii) all other Intellectual Property of Seller primarily used in the Business (the “**Transferred IP**”);
- (c) subject to the terms and conditions of Section 1.9, (i) the contracts listed on Section 1.1(c) of the Disclosure Schedule (the “**Scheduled Contracts**”) and (ii) all other contracts of Seller primarily used in the Business (clauses (i) and (ii) collectively, the “**Contracts**”), and in the case of each of clause (i) and (ii) and all associated rights of Seller under such contracts with respect to (A) claims relating to the collection of any receivables existing on the Closing Date thereunder that are included in the Acquired Assets, (B) claims relating to any payables existing on the Closing Date thereunder that are included in the Assumed Liabilities and (C) matters arising after the Closing;
- (d) all notes receivable, trade receivables, accounts receivable, commissions, and other receivables and rights to payment of Seller, in each case, to the extent primarily related to the operation of the Business;
- (e) all transferable Permits obtained by, on behalf of, or for the benefit of Seller from any Governmental Authority that are primarily used in the Business;
- (f) copies of all books, records and printed or digital materials exclusively used in the operation of the Business;
- (g) all marketing and advertising materials, all supplies and miscellaneous assets, including the Uniform Product Code Symbols of Seller primarily used in the Business;
- (h) all choses in action, causes of action, claims, and demands of Seller (whether known or unknown, matured or unmatured, accrued or contingent), including rights as an unpaid vendor, rights of recovery, rights of warranty and indemnity, rights of set-off and rights of recoupment, in each case, only if exclusively arising out of an

Assumed Liability or a receivable which is included as a Current Asset in Closing Net Working Capital;

- (i) all prepaid expenses of the Business and security deposits to the extent primarily related to the Business detailed on Section 1.1(i) of the Disclosure Schedule;
- (j) all insurance proceeds actually received by Seller following Closing to the extent arising from Assumed Liabilities; and
- (k) any assets used primarily used in the operation of the Business, including those identified on Section 1.1(k) of the Disclosure Schedule.

Section 1.2. Excluded Assets. Notwithstanding anything to the contrary contained in this Agreement, Buyer expressly understands and agrees that the following assets and properties of Seller (the “**Excluded Assets**”) shall be retained by Seller, and shall be excluded from the Acquired Assets:

- (a) any and all cash, cash equivalents, short-term investments and marketable securities of Seller, wherever located;
- (b) (i) the XPE Business and all assets and properties used therein but excluding any Acquired Assets specifically identified on Section 1.1 of the Disclosure Schedule and (ii) the assets, properties and rights specifically listed and described on Section 1.2(b) of the Disclosure Schedule;
- (c) any and all associated rights, other than that of the Seller’s, of any other party under a related transaction agreement between the Seller and any of its Affiliates (the “**Related Party Transactions**”) listed on Section 1.2(c) of the Disclosure Schedule;
- (d) all insurance policies of Seller and insurance benefits under such policies, including rights and proceeds, other than insurance proceeds described in Section 1.1(d);
- (e) intercompany notes receivable, trade receivables, accounts receivable, commissions, and other receivables and rights to payment of Seller not primarily related to the Business;
- (f) other than those described as Acquired Assets in Section 1.1(c), Section 1.1(d) or Section 1.1(i), all claims of Seller against third parties, including those relating to the Acquired Assets, whether choate or inchoate, known or unknown, contingent or noncontingent;
- (g) any and all Tax Returns and other Books and Records, including any and all Tax Returns and other Books and Records having to do with the corporate organization or governance of Seller, related to Taxes paid or payable by Seller or any of its Affiliates or not primarily related to the Business;
- (h) other than those described as Acquired Assets in Section 1.1(c) or Section 1.1(d), all prepaid expenses, claims, deposits, prepayments, refunds, causes of action, demands, actions, suits, choses in action, rights of recovery, rights under guarantees, warranties, indemnities and all similar rights against third parties, rights of setoff and rights of recoupment, whether choate or inchoate, known or unknown,

contingent or non-contingent, in each case, to the extent relating to or arising out of matters, circumstances or states of fact that existed prior to Closing; and

- (i) except for those Acquired Assets set forth on Section 1.1 of the Disclosure Schedule, any and all other assets, properties, rights, Contracts and claims of Seller not primarily related to the operation of the Business, wherever located, whether tangible, real, personal or mixed.

The parties hereto acknowledge and agree that Buyer will not acquire or be permitted to retain any direct or indirect right, title and interest in any Excluded Assets.

Section 1.3. Assumption of Liabilities. Buyer hereby assumes and agrees to pay, perform and discharge when due all of the following Liabilities of Seller to the extent primarily related to or arising out of the Acquired Assets or the Business on or after the Closing, other than the Retained Liabilities (“**Assumed Liabilities**”):

- (a) all Liabilities under any of the Contracts (i) for payments required under the terms of such Contracts whether such payments arose prior to or after the Closing (other than Liabilities for any breaches of such Contracts that occurred prior to Closing) and (ii) for any breaches of such Contracts in connection with the transactions contemplated by this Agreement;
- (b) any and all Liabilities arising out of the Business at and/or after the Closing;
- (c) all Liabilities of Seller with respect to the Business reflected in the calculation of Closing Net Working Capital;
- (d) any and all Liabilities for Taxes imposed with respect to, arising out of or relating to the Acquired Assets, the Assumed Liabilities or the Business, in each case, arising at and/or after the Closing;
- (e) all Liabilities arising from claims for severance asserted after the Closing Date by Transferred Employees as set forth in Section 4.7(b).
- (f) all Liabilities of Seller for which Buyer has expressly assumed as set forth in Section 4.7.

Section 1.4. Retained Liabilities. Notwithstanding anything in this Agreement to the contrary, Seller shall maintain sole responsibility of, and solely shall retain, pay, perform, and discharge, the following liabilities of Seller (collectively, the “**Retained Liabilities**”):

- (a) other than as specified in Section 1.3(a), 1.3(c) or 1.3(e), all Liabilities of the Business to the extent arising prior to Closing;
- (b) all transaction expenses payable to third-party advisers incurred by Seller or its Affiliates in connection with the consummation of the transactions contemplated hereby, including under the Transition Services Agreement (except as explicitly provided otherwise in the Transition Services Agreement);
- (c) all Liabilities to the extent arising out of and relating to the Excluded Assets;
- (d) except as set forth in Section 4.7 or set forth in the Closing Net Working Capital, any Liability for Taxes related to the Seller and its operations generally, including but not limited to (i) any Taxes arising as a result of Seller’s operation of the

Business or ownership of the Acquired Assets prior to the Closing, (ii) any Taxes that will arise as a result of the sale of the Acquired Assets pursuant to this Agreement and (iii) any employment Taxes for Business Employees arising for payments due to such employees by Seller prior to Closing;

- (e) all Liabilities to the extent related to the pre-Closing period arising out of a breach by Seller of any Contract prior to the Closing Date;
- (f) Liabilities of Seller under Environmental Laws (i) to the extent related to the pre-Closing period arising out of the operation of the Business or (ii) that arise out of Seller's operation of its other businesses;
- (g) except as provided in Section 4.7, any Liability of Seller under any employee benefit plans or relating to payroll, vacation, sick leave, workers' compensation, unemployment benefits, pension benefits, employee stock option or profit sharing plans, health care plans or benefits or any other employee plans or benefits of any kind for (i) Seller's employees who are not Business Employees or (ii) solely in respect of pre-Closing periods, for Business Employees;
- (h) except as provided in Section 4.7, any Liability of Seller under any employment, severance, retention or termination agreement between Seller and any employee of Seller (i) who is not a Business Employee or (ii) solely in respect of pre-Closing periods, who is a Business Employee;
- (i) any Liability of Seller to indemnify, reimburse or advance amounts to any officer or director of Seller or any employee of Seller (who is not a Transferred Employee);
- (j) any Liability of Seller arising out of any legal proceeding pending prior to the Closing;
- (k) any Liability of Seller under this Agreement or the Transition Services Agreement; and
- (l) any Liability of Seller to any of Seller's stockholders or otherwise apply all or any part of the consideration received hereunder.

For the avoidance of doubt, Retained Liabilities do not include, and Seller shall not be responsible or liable for any Liabilities that arise as a result of Buyer's continuing conduct of the Business following the Closing, even if such continuing conduct is substantially the same manner as Seller's conduct prior to the Closing.

Section 1.5. Purchase Price. The purchase price for the Acquired Assets (the "**Purchase Price**") shall be equal to \$3,500,000.00, subject to adjustment as provided in Section 1.6 and Section 1.7, paid to Seller in immediately available funds.

Section 1.6. Purchase Price Adjustment.

- (a) Prior to the date hereof, Seller prepared and delivered to Buyer (i) a written statement (the "**Preliminary Closing Statement**") setting forth Seller's good faith estimate of the calculation of the Net Working Capital of the Business determined with respect to the Current Assets and Current Liabilities as of 11:59 p.m. on the day immediately preceding the Closing Date (the "**Preliminary Net Working Capital**"), prepared and calculated in a manner consistent with the accounting

methods, practices, principles, policies and procedures agreed by the parties, with consistent classifications, judgments and valuation and estimation methodologies (the “**Agreed Accounting Principles**”) and (ii) access to all records and work papers reasonably necessary to compute and verify the information set forth in the Preliminary Closing Statement. The Preliminary Closing Statement, the Final Closing Statement and all calculations and determinations therein (i) shall not include any purchase accounting or other adjustment arising out of the consummation of the transactions contemplated by this Agreement, (ii) will exclude the effect of any act or decision of Buyer occurring after the Closing, (iii) shall follow the defined terms contained in this Agreement whether or not such terms are consistent with GAAP and (iv) shall calculate any reserves, accruals or other non-cash expense items on a pro rata (as opposed to monthly accrual) basis to account for a Closing that occurs on any date other than the last day of a fiscal period (the “**Working Capital Principles**”). For the avoidance of doubt, no amount shall be double-counted in calculating the amounts comprising either the Estimated Purchase Price or the Final Purchase Price.

- (b) On the Closing Date, the Purchase Price shall be adjusted on a dollar-for-dollar basis, if the Preliminary Net Working Capital as set forth on the Preliminary Closing Statement is not equal to the Target Net Working Capital, as follows:
 - (i) if the Preliminary Net Working Capital as set forth on the Preliminary Closing Statement is greater than the Target Net Working Capital, the Purchase Price shall be adjusted upward by the amount of such excess; or
 - (ii) if the Preliminary Net Working Capital as set forth on the Preliminary Closing Statement is less than the Target Net Working Capital, the Purchase Price shall be adjusted downward by the amount of such deficit.

Section 1.7. Post-Closing Adjustment for Purchase Price.

- (a) As promptly as practicable following the Closing Date (but no later than sixty (60) days after the Closing Date) (the “**Delivery Period**”), Buyer shall prepare, or cause to be prepared and deliver to Seller a written statement, executed by the chief financial officer or other similar officer of the Buyer (the “**Closing Statement**” and the date on which the Closing Statement is delivered to the Seller, the “**Delivery Date**”) that shall set forth a calculation of the actual Net Working Capital of the Business determined with respect to the Current Assets and Current Liabilities as of 11:59 p.m. on the day immediately prior to the Closing Date (the “**Closing Net Working Capital**”), prepared and calculated using the Agreed Accounting Principles and the Working Capital Principles and shall include reasonably detailed support for such calculations. During the Delivery Period, Seller shall respond within a reasonable period of time to Buyer’s reasonable requests for information that it deems necessary for it to prepare the Closing Statement.
- (b) The Seller shall have forty-five (45) days following the Delivery Date to review the Closing Statement (the “**Review Period**”). If Seller has any objections with respect to the calculation, preparation or content of the Closing Statement, it will deliver a written notice of its disagreement (a “**Notice of Disagreement**”) specifying the

nature and amount of any disputed item. If a Notice of Disagreement is not delivered to the Buyer during the Review Period, the Closing Statement shall become final and binding on the parties hereto. During the Review Period, Buyer shall make available to the Seller (i) the accountants and employees of Buyer who prepared or were otherwise involved in the preparation of the Closing Statement, (ii) the books and records of Buyer and (iii) such other employees of Buyer and materials as Seller reasonably requests to evaluate the Closing Statement.

- (c) During the Review Period, the parties in good faith shall seek to resolve in writing any differences that they may have with respect to the matters specified therein. Any disputed items resolved in writing between Buyer and Seller within such forty-five (45) Business Day period shall be final and binding with respect to such items, and if Seller and Buyer agree in writing on the resolution of each disputed item specified by Seller in the Notice of Disagreement, the Closing Statement (including the calculation of the Closing Net Working Capital) so determined shall be final and binding on the parties for all purposes hereunder. If the parties do not obtain final resolution within thirty (30) days after the Buyer has received Seller's Notice of Disagreement, Seller and Buyer shall jointly submit, in writing, to a mutually acceptable independent public accounting firm of national recognition other than Seller's accountants or Buyer's accountants (the "**Independent Accountant**"), their briefs detailing their views as to the nature and amount of each item remaining in dispute and the calculation of the Closing Net Working Capital, and the Independent Accountant shall make a written determination as to each such disputed item and the calculation of the Closing Net Working Capital, which determination shall be final and binding on the parties for all purposes hereunder. The Independent Accountant shall be authorized to resolve only those items remaining in dispute between the parties in accordance with the standards set forth in this Section 1.7 and only within the range of the difference as to the Closing Net Working Capital and the Purchase Price stated by each party. The determination of the Independent Accountant shall be based solely on the briefs submitted by the parties and not on independent review and shall be accompanied by a certificate of the Independent Accountant that it reached such determination in accordance with this Section 1.7. Seller and Buyer shall each use its commercially reasonable efforts to cause the Independent Accountant to render a written decision resolving the matters submitted to it within twenty (20) Business Days following the submission thereof. The costs of any dispute resolution pursuant to this clause (c), including the fees and expenses of the Independent Accountant and of any enforcement of the determination thereof, shall be borne by Buyer and Seller pro rata as between Buyer, on the one hand, and Seller, on the other hand, based on the proportionate deviation of each of their assertions of Closing Net Working Capital in the Closing Statement and Notice of Disagreement, respectively, from the Independent Account's determination of Closing Net Working Capital.
- (d) The fees and disbursements of the Representatives of each party incurred in connection with their preparation or review of the Closing Statement (including the computation of the Closing Net Working Capital) and preparation or review of any Notice of Disagreement, as applicable, shall be borne by such party.

- (e) The Purchase Price shall be adjusted if the Closing Net Working Capital finally determined pursuant to this Section 1.7 is not equal to the Preliminary Net Working Capital as set forth on the Preliminary Closing Statement, as follows:
- (i) if the Net Adjustment Amount is positive, the Purchase Price shall be adjusted upward in an amount equal to the Net Adjustment Amount, and Buyer shall promptly pay such amount to Seller, but in any event within five (5) Business Days following such determination, in immediately available funds by wire transfer to a bank account designated by Seller; and
 - (ii) if the Net Adjustment Amount is negative (in which case the Net Adjustment Amount for purposes of this clause (ii) shall be deemed to be equal to the absolute value of such amount), the Purchase Price shall be adjusted downward in an amount equal to the Net Adjustment Amount, and Seller shall pay to Buyer such amount no later than five (5) Business Days following such determination, in immediately available funds by wire transfer to a bank account designated by Buyer.

Section 1.8. Allocation. Within sixty (60) days following the final determination of the contents of the Closing Statement pursuant to Section 1.7, the Buyer shall deliver to Seller for its review a schedule (the “**Proposed Allocation Schedule**”) allocating the Purchase Price among the Acquired Assets (as determined for U.S. federal income tax purposes, including any Assumed Liabilities). The allocation shall be reasonable and shall be prepared in accordance with Section 1060 of the Code and the regulations thereunder. Seller shall review the Proposed Allocation and provide any comments to Buyer within thirty (30) days following the delivery of the Proposed Allocation Schedule. If the Seller does not, within such thirty (30) days, deliver written comments to the allocation proposed by Buyer, or if any such disagreement is resolved among the Seller and Buyer without adjustment to the Buyer proposed Allocation Schedule, then such allocation shall become final without amendment. To the extent the Seller and Buyer cannot agree on a mutually acceptable determination of the allocation within fifteen (15) days of Buyer’s receipt of the Seller’s objections (if any), the parties shall be entitled to determine their own purchase price allocations, in any manner they may determine, and neither party shall have any liability to the other with respect to such determination or allocation; provided, that each party engages its own accounting firm to determine such allocation. Each of Buyer and Seller agrees to (a) prepare and file IRS Form 8594, and all Tax Returns, (b) take all positions in any refund claim, in any litigation or otherwise, in each case, in a manner consistent with any such agreed allocation, (c) provide the other promptly with any other information required to complete Internal Revenue Service Forms 8594 and (d) consult, and to cause their respective Affiliates to consult, with one another with respect to any Tax audit, controversy or litigation relating to the allocation.

Section 1.9. Third Party Consents. On the Closing Date, the Seller shall assign to Buyer, and the Buyer will assume, the Contracts to the extent permitted by the terms of such Contracts. Notwithstanding anything to the contrary in this Agreement, if the assignment or assumption of all or any portion of any rights or obligations under any Contract shall require the consent of another Person or of the other party thereto or any other third party that has not been obtained prior to the Closing Date, then this Agreement shall not constitute an agreement to assign the same or otherwise transfer any rights or obligations under any such Contract if an attempted assignment or transfer without any such consent would constitute a breach or violation thereof. In

connection with this Section 1.9, if a consent or approval is required by any party under any Contract that would otherwise be included in the Acquired Assets and is not obtained prior or at Closing, or if an attempted assignment is ineffective or would impair Buyer's rights under the Acquired Asset in question so that Buyer would not in effect acquire the benefit of all such rights, Seller and Buyer, to the maximum extent permitted by Law and the Acquired Asset, shall for a period beginning on the Closing Date and ending one (1) year following the Closing Date, cooperate with each other and use commercially reasonable arrangements designed to provide such benefits and burdens to Buyer and relieve Seller from any obligation, liability or burden associated therewith; provided, however, that neither Seller nor any of its Affiliates shall be required to commence or participate in any litigation or offer or grant any accommodation (financial or otherwise, including an assignment or similar fee) to such Person or in connection with obtaining such consent(s). Buyer acknowledges and agrees that following the end of such one (1) year period described in this Section 1.9, any Contracts otherwise subject to this Section 1.9 shall be deemed assigned to and assumed by Buyer.

Section 1.10. Closing. The closing of the transactions contemplated by this Agreement (the "**Closing**") shall take place on the date hereof by the remote exchange of electronic copies of documents and signatures. The date on which the Closing occurs is referred to in this Agreement as the "**Closing Date**".

Section 1.11. Closing Obligations. In addition to any other documents to be delivered under other provisions of this Agreement, on or before Closing:

- (a) At the Closing, Seller shall deliver or cause to be delivered to Buyer, together with funds sufficient to pay all Taxes necessary for the transfer, filing or recording thereof:
 - (i) a bill of sale for all of the Acquired Assets that are tangible personal property attached hereto as Exhibit B (the "**Bill of Sale**"), duly executed by Seller;
 - (ii) an assignment of all of the Acquired Assets that are intangible personal property in a form satisfactory to Buyer, which assignment shall also contain Buyer's undertaking and assumption of the Assumed Liabilities (the "**Assignment and Assumption Agreement**") attached hereto as Exhibit C, duly executed by Seller;
 - (iii) assignments of all Transferred IP and separate assignments of all registered Marks, Patents and Copyrights each in a form satisfactory to Buyer, duly executed by Seller;
 - (iv) an executed Transition Services Agreement (the "**Transition Services Agreement**") attached hereto as Exhibit D;
 - (v) an executed extension and assignment to Buyer of the current RRD Go contract for a period extending at least three (3) years after Closing;
 - (vi) an executed consent to the transfer to Buyer of its license to use the Edgar® trademark owned by the SEC; and
 - (vii) an executed instrument from a duly authorized officer of the Seller authorizing the execution and delivery of this Agreement and other

transaction documents and the consummation of the transactions contemplated hereby.

- (b) At the Closing, Buyer shall, or cause to be delivered, deliver to Seller:
 - (i) the Purchase Price by wire transfer of immediately available funds to a bank account specified by Seller in Exhibit E;
 - (ii) the Assignment and Assumption Agreement, duly executed by Buyer;
 - (iii) the Transition Services Agreement, duly executed by Buyer;
 - (iv) an executed extension and assignment to Buyer of the current RRD Go contract for a period extending at least three (3) years after Closing; and
 - (v) an executed instrument from a duly authorized officer of the Buyer authorizing the execution and delivery of this Agreement and other transaction documents and the consummation of the transactions contemplated hereby.

ARTICLE II. REPRESENTATIONS AND WARRANTIES OF SELLER.

Seller hereby represents and warrants to Buyer as follows, as of the date of this Agreement; provided, however, that other than Section 2.1, Section 2.2 and Section 2.3, such representations and warranties shall not be deemed to speak to or cover any operations, assets, liabilities or businesses of Seller or any of its subsidiaries other than the Business, the Acquired Assets and the Assumed Liabilities.

Section 2.1. Organization. Seller is a corporation duly organized, validly existing and in good standing under the laws of the State of Delaware and has all corporate power and authority necessary to own or lease its properties and assets and to carry on the Business as currently conducted, except where the failure to be so organized, existing, qualified or in good standing, or to have such power or authority when taken together with all other such failures, has not, and would not reasonably be expected to have, individually or in the aggregate, a Material Adverse Effect. Seller is duly qualified or licensed to do business and is in good standing in each of the jurisdictions in which the character of the properties owned or held under lease by it or the nature of the Business makes such qualification necessary, except where the failure to be so qualified or in good standing when taken together with all other such failures, has not, and would not reasonably be expected to have, individually or in the aggregate, a Material Adverse Effect.

Section 2.2. Authority. Seller has the requisite corporate power and authority to execute and deliver this Agreement and to consummate the transactions contemplated hereby and to perform its obligations hereunder. The execution, delivery and performance by Seller of this Agreement, and the consummation by Seller of the transactions contemplated hereby, have been duly and validly authorized by Seller's board and no other corporate proceedings on the part of Seller are necessary to authorize this Agreement or to consummate the transactions contemplated hereby or to perform its obligations hereunder. This Agreement has been duly and validly executed and delivered by Seller and, assuming this Agreement constitutes the legal, valid and binding agreement of Buyer, constitutes a legal, valid and binding agreement of Seller, enforceable against Seller in accordance with its terms, except to the extent that enforceability may be limited by applicable bankruptcy, insolvency, reorganization, moratorium and similar Laws, now or hereafter

in effect, affecting creditors' rights generally and by general principles of equity. Upon the execution and delivery by Seller of any other document to which Seller is a party in connection with this Agreement, other than this Agreement and the Disclosure Schedules hereto, each of such other documents will constitute the legal, valid and binding obligation of Seller, enforceable against Seller in accordance with its terms, except to the extent that enforceability may be limited by applicable bankruptcy, insolvency, reorganization, moratorium and similar Laws, now or hereafter in effect, affecting creditors' rights generally and by general principles of equity.

Section 2.3. Non-Contravention; Filings and Consents.

- (a) The execution, delivery and performance by Seller of this Agreement and the consummation by Seller of the transactions contemplated hereby do not and will not (with or without notice or lapse of time, or both): (i) contravene, conflict with, or result in any violation or breach of any provision of the certificate of incorporation or bylaws of the Seller, (ii) contravene, conflict with or result in a violation or breach of any provision of any Law or Order to which Seller or the Acquired Assets are subject, (iii) require any consent or approval under, violate, conflict with, result in any breach of or any loss of any benefit under, or constitute a change of control or Default under, or result in termination or give to others any right of termination, vesting, amendment, acceleration or cancellation of any critical Scheduled Contract set forth on Schedule 2.3(a) of the Disclosure Schedule to which Seller is a party, or by which its properties or assets may be bound or affected or any Governmental Authority affecting, or relating in any way to the Business, or result in the imposition or creation of any Lien (other than a Permitted Lien) on, or with respect to, any of the Acquired Assets, except, with respect to clauses (ii) and (iii), for (A) any such consent, approvals and authorizations, the failure to obtain which, individually or in the aggregate, would not reasonably be expected to be material to the Business and (B) any such conflicts, violations, breaches, losses, defaults, terminations, rights of termination, vesting, amendment, acceleration or cancellation of Liens that, individually or in the aggregate, would not reasonably be expected to be material to the Business.
- (b) The execution, delivery and performance of this Agreement by Seller and the consummation of the transactions contemplated hereby by Seller do not and will not require any consent or approval of any Governmental Authority, other than any consents or approvals the absence of which would not reasonably be expected to have, individually or in the aggregate, a Material Adverse Effect. For purposes of this Agreement, “**Governmental Authority**” means any national, state or local, domestic or foreign or international, government or any judicial, legislative, executive, administrative or regulatory authority, tribunal, agency, body, entity or commission or other governmental, quasi-governmental or regulatory authority or agency, domestic or foreign or international.

Section 2.4. Financial Statements.

- (a) True and complete copies of: (i) the unaudited balance sheets and statements of income, as of and for the fiscal year ended December 31, 2021 and (ii) unaudited interim balance sheets and statements of income as of and for the nine-month period ended September 30, 2022 (the “**Interim Financial Statements**” and, together with

the items described in clause (i) above, the “**Financial Statements**”) have been delivered by Seller to Buyer. The Business is not a separately reported unit of Seller. As a result, the Financial Statements prepared for the Business are not prepared as part of Seller’s normal reporting process. The Financial Statements were prepared in accordance with the books and records of the Seller (except, in each case (A) as noted therein and (B) for failure to be so prepared that would not result in an unfair presentation of the financial condition and the results of the operations of the Business, in the aggregate). The Financial Statements present fairly in all material respects the financial condition and the results of operations of the Business as of the dates thereof or for the periods covered thereby (except, in each case (I) as noted therein and (II) for normal adjustments that were not or will not be material in amount or effect), but do not reflect what the consolidated results of operations and financial positions would have been if the Business had been operated independently of the Seller during the periods presented.

- (b) Except as and to the extent disclosed in the Interim Financial Statements or on Section 2.4 of the Disclosure Schedule, Seller has no material liabilities that are Assumed Liabilities, other than (i) executor obligations under Seller agreements, and (ii) liabilities incurred in the ordinary course of business since September 30, 2022.

Section 2.5. Absence of Certain Changes. Since December 31, 2021 through the date of this Agreement, except as set forth in Section 2.5 of the Disclosure Schedule, (a) there has not been a Material Adverse Effect, and (b) Seller has conducted the Business in all material respects only in the ordinary course of business consistent with past practice, except for actions taken in respect of this Agreement.

Section 2.6. Employee Benefit Plans.

- (a) Neither Seller nor any of its ERISA Affiliates has incurred any liability under, arising out of or by operation of the Employee Retirement Security Act of 1974 (93 P.L. 406), as amended (“**ERISA**”) (other than liability for premiums to the Pension Benefit guaranty corporation arising in the ordinary course) for which Buyer could have liability after the Closing Date.
- (b) Seller is in compliance in all material respects with all Applicable Laws pertaining to employment and employment practices to the extent they relate to employees of the Business, including those related to wages, hours, collective bargaining and the payment and withholding of taxes and other sums as required by the appropriate Governmental Authority. There is no claim with respect to payment of wages, salary or overtime pay that has been asserted or is now pending or threatened before any Governmental Authority with respect to any Persons currently or formerly employed by Seller in connection with the Business. Seller is not a party to, or otherwise bound by, any consent decree with, or citation by, any Governmental Authority relating to employees of the Business or employment practices. To Seller’s Knowledge, there is no proceeding with respect to a violation of any occupational safety or health standard that has been asserted or is now pending or, to the Knowledge of Seller, threatened with respect to Seller and related to the Business.

- (c) Except as disclosed on Section 2.6(c) of the Disclosure Schedule, the execution and delivery of this Agreement and the consummation of the transactions contemplated by this Agreement (either alone or in conjunction with any other event) will not:
 - (i) result in any material payment or benefit becoming due or payable, or required to be provided, to any director, employee, consultant or independent contractor of Seller, or cause or create any right to the forgiveness of indebtedness owed by any employee to Seller;
 - (ii) materially increase the amount of, or accelerate the time of payment of, any benefit or compensation payable under any Employee Plan or other employment arrangement, or result in the payment of any amount that would not be deductible by reason of Section 280G of the Code; or
 - (iii) result in any violation or breach of or Default under, or limit the ability of Seller to amend, modify or terminate, any Employee Plan or other employee benefit agreement.

Section 2.7. Labor and Employment Matters.

- (a) Seller is not a party to, bound by or subject to, or is currently negotiating in connection with entering into, any collective bargaining agreement or understanding with a labor union or organization with respect to the employees of the Business. To the Knowledge of Seller, there is no activity or proceeding by a labor union or representative thereof to organize any employees of Seller, nor have there been any strikes, slowdowns, work stoppages or threats thereof by or with respect to such employees during the last three years. “**Business Employee**” means any current or former employee of Seller or any of its Subsidiaries who worked primarily in support of the Business.
- (b) Section 2.7(b) of the Disclosure Schedule contains a complete and accurate list of the following information for each Business Employee currently employed by Seller, including each employee on leave of absence or layoff status: employer; name; job title; date of hiring or engagement; date of commencement of employment or engagement; current compensation paid or payable; sick and vacation leave that is accrued but unused; and service credited for purposes of vesting and eligibility to participate under any Employee Plan, or any other employee or director benefit plan.

Section 2.8. Litigation.

- (a) Except as set forth in Section 2.8 of the Disclosure Schedule, there is no material complaint, claim, action, suit, litigation, proceeding or governmental or administrative investigation pending or, to the Knowledge of Seller, threatened against or affecting Seller, including in respect of the transactions contemplated hereby that, individually or in the aggregate, would reasonably be expected to have a Material Adverse Effect. Seller is not subject to any outstanding Order (i) that prohibits Seller from conducting the Business as now conducted or proposed to be

conducted or (ii) that would, individually or in the aggregate, have had or would reasonably be expected to have had a Material Adverse Effect.

- (b) To the Knowledge of Seller, except as set forth in Section 2.8 of the Disclosure Schedule, no event has occurred or circumstance exists that is reasonably likely to give rise to or serve as a basis for the commencement of any complaint, claim, action, suit, litigation, proceeding or governmental or administrative investigation that, individually or in the aggregate, would reasonably be expected to have a Material Adverse Effect.

Section 2.9. Tax Matters.

- (a) Seller has timely filed all material federal, state, local and foreign Tax returns, estimates, information statements and reports relating to any and all Taxes of Seller with respect to the Business (the “**Tax Returns**”) required to be filed by Law by Seller as of the date hereof. All such Tax Returns are true, correct and complete, and Seller has timely paid all material Taxes attributable to Seller that were due and payable by it as shown on such Tax Returns, except with respect to matters contested in good faith.
- (b) To the Knowledge of Seller, there are no Liens as a result of any unpaid Taxes upon any of the Acquired Assets other than Permitted Liens listed on Section 2.9(b) of the Disclosure Schedule.
- (c) Seller has withheld (and timely paid to the appropriate Governmental Authority) proper and accurate amounts for all periods through the date hereof in compliance with all Tax withholding provisions of applicable federal, state, local and foreign Laws other than provisions of employee withholding (including, without limitation, withholding of Tax on dividends, interest, and royalties and similar income earned by non-resident aliens and foreign corporations and withholding of Tax on United States real property interests).
- (d) For purposes of this Agreement, “**Tax**” or, collectively, “**Taxes**” means any and all U.S. federal, state, local and non-U.S. taxes, assessments and other governmental charges, duties (including stamp duty), impositions and liabilities, including capital gains tax, taxes based upon or measured by gross receipts, income, profits, sales, use and occupation, and value added, ad valorem, transfer, franchise, withholding, payroll, recapture, employment, escheat, excise and property taxes as well as public imposts, fees and social security charges (including health, unemployment, workers' compensation and pension insurance), together with all interest, penalties, and additions imposed by a Governmental Authority with respect to such amounts.

Section 2.10. Compliance with Laws; Permits.

- (a) Since January 1, 2019, Seller, in the operation of the Business, has not violated or would otherwise be in Default with respect to or in violation of any (i) statute, law, ordinance, rule, regulation or requirement of a Governmental Authority (each, a “**Law**”) or (ii) order, judgment, writ, decree or injunction issued by any court, agency or other Governmental Authority (each, an “**Order**”) applicable to Seller or by which any property or asset of the Business held by Seller is bound or affected in any material respect.

- (b) Since January 1, 2019, Seller has not received any written notice (i) of any Default or violation as described in clause (a) above, (ii) of any administrative, civil or criminal investigation or audit by any Governmental Authority relating to the Business or (iii) from any Governmental Authority alleging that Seller is not in compliance with any Law or Order related to the Business, in each case, the subject of which notice has not been resolved as required thereby or otherwise to the satisfaction of the party sending such notice.
- (c) Seller has all permits, licenses, orders, registrations, certificates, variances, authorizations, consents, approvals, franchises, and similar rights from Governmental Entities required to conduct the Business as currently conducted (“**Permits**”) and such Permits are valid and in full force and effect, except where failure to obtain, or the failure to be in full force and effect of, any permits, individually or in the aggregate, would not reasonably be expected to have a Material Adverse Effect.

Section 2.11. Environmental Matters.

- (a) The operations of the Business comply in all material respects with all applicable Environmental Laws.
- (b) Seller is not, in respect of the Acquired Assets, subject to a written demand, letter, claim or request for information alleging that Seller is in violation of or liable under any Environmental Law or requiring material remedial action in respect of a release or threatened release of a Hazardous Substance into the environment, which in each case, has not been resolved in all material respects.
- (c) To the Knowledge of Seller, Seller is not subject to any order, decree or injunction with any Governmental Authority or agreement with any third party concerning liability under any Environmental Law or relating to Hazardous Substances.

For purposes of this Agreement, “**Environmental Law**” means any federal, state or local statute, Law, or Order relating to: (i) the protection of health and safety or the environment or (ii) the handling, use, transportation, disposal, release or threatened release of any Hazardous Substance; and “**Hazardous Substance**” means any substance that is: (i) listed, classified, regulated or defined pursuant to any Environmental Law or (ii) any petroleum product or byproduct, asbestos-containing material, polychlorinated biphenyls or radioactive material.

Section 2.12. Intellectual Property.

- (a) Seller owns or is validly licensed or otherwise has the right to use all Transferred IP.
- (b) To the Knowledge of Seller, the Transferred IP used by Seller does not infringe, misappropriate or otherwise violate the Intellectual Property of any third party.
- (c) To the Knowledge of Seller, with respect to the Transferred IP and the Business, Seller has not received within the three (3) years preceding Closing, any written charge, complaint, claim, demand or notice alleging any infringement, misappropriation or other violation (including any claim that Seller must license or refrain from using any Transferred IP or third-party Intellectual Property), the

subject of which has not been resolved as required thereby or otherwise to the satisfaction of the party sending any of the foregoing.

- (d) To Seller's Knowledge no third party has infringed upon, misappropriated or otherwise violated the Transferred IP of Seller, except as would not be material to the Business.

Section 2.13. Material Contracts.

- (a) Section 2.13(a) of the Disclosure Schedule, sets forth as of the date of this Agreement a true and complete list of the following Contracts (other than purchase orders and invoices) to which Seller is a party or which bind or affect its properties or assets that are used in the Business or the Acquired Assets (in each case, other than any Contract that is an Excluded Asset or any Contract that is used to provide services, assets or products pursuant to the documents contemplated by this Agreement) (each, a "**Material Contract**"):
 - (i) contracts containing provisions that limit in any material respect the ability of Seller (or which, following the consummation of the transactions contemplated hereby, would restrict in any material respect the ability of Buyer) to compete in the Business or with any Person or in any geographic area, or to sell, supply or distribute any of Seller's services or products related to the Business (including any non-compete, exclusivity, "most-favored-nation" or similar requirements) or pursuant to which any benefit or right related to the Business is required to be given or lost, or any penalty or detriment is incurred, as a result of so competing or engaging;
 - (ii) contracts that provide for or govern the formation, creation, operation, management or control of any strategic partnership, joint venture, joint development, or similar arrangement or partnership related to the Business; and
 - (iii) contracts that relate to indebtedness having an outstanding principal amount in excess of \$10,000 or conditional sale arrangements, the sale, securitization or servicing of loans or loan portfolios, in each case, in connection with which the aggregate actual contingent obligations of Seller under such contract are greater than \$10,000 and that are secured by the assets of the Business.
- (b) (i) each Material Contract is valid and binding on Seller that is a party thereto and, to the Knowledge of Seller, each other party thereto, and is in full force and effect and enforceable in accordance with its terms, except to the extent enforceability may be subject to applicable bankruptcy, insolvency, reorganization, moratorium or other similar Laws, now or hereafter in effect, relating to creditors' rights generally, and to general equitable principles, and unless expired or terminated in accordance with its terms; (ii) Seller and, to the Knowledge of Seller, each other party thereto, have performed and complied with all obligations required to be performed or complied with by them under each Material Contract; and (iii) there is no Default under any Material Contract by Seller or, to the Knowledge of Seller, by any other party, and no event has occurred that with the lapse of time or the

giving of notice or both would constitute a Default thereunder by Seller or, to the Knowledge of Seller, by any other party thereto.

Section 2.14. Anticorruption. Seller, including its employees, directors, agents or other Persons acting on their behalf, have not, directly or indirectly, taken any action that would cause Seller to be in violation of the Foreign Corrupt Practices Act of 1977, as amended (the “FCPA”), or any other anticorruption or anti-bribery Laws applicable to Seller (collectively with the FCPA, the “**Anticorruption Laws**”). To the Knowledge of Seller, including its employees, directors, agents or other persons acting on their behalf, have not, directly or indirectly, corruptly given, loaned, paid, promised, offered or authorized payment of money or anything of value to any “foreign official” as defined in the FCPA or, in violation of Law, to any other government official, to secure any improper advantage or to obtain or retain business for any Person or to achieve any other purpose prohibited by the Anticorruption Laws. Seller has established and implemented reasonable internal controls and procedures intended to ensure compliance with the Anticorruption Laws.

Section 2.15. Brokers; Certain Expenses. No agent, broker, investment banker, financial advisor or other firm or Person, whose fees and expenses shall be paid solely by Seller, is or shall be entitled to receive any brokerage, finders, financial advisors, transaction or other fee or commission in connection with this Agreement or the transactions contemplated hereby based upon agreements made by or on behalf of Seller.

Section 2.16. Adequacy of Acquired Assets; Title to Assets.

- (a) The Acquired Assets, when taken together with the assets used to provide the services contemplated by the Transition Services Agreement, include, all rights, properties (including Seller's Transferred IP), interests in properties, and assets necessary to permit Buyer to carry on the Business in all material respects as presently conducted by Seller in substantially the same manner as prior to Closing, assuming that all necessary consents and approvals under any Contracts, Permits or Laws are obtained.
- (b) Seller owns good, marketable, and transferable title to all of the Acquired Assets, free and clear of any Liens other than Permitted Liens.

Section 2.17. Solvency. Immediately following the Closing Date, and until Seller has satisfied all of its obligations under this Agreement, including its indemnification obligations under Article V, Seller shall have sufficient assets to pay its Liabilities as they become due in the ordinary course of business and will have sufficient liquidity of assets, taking into account all Liabilities, to satisfy all of its indemnification obligations under Article V as they become due and owing.

ARTICLE III. REPRESENTATIONS AND WARRANTIES OF BUYER.

Buyer represents and warrants to Seller as follows:

Section 3.1. Organization. Buyer is a corporation duly organized, validly existing and in good standing under the laws of the jurisdiction of its incorporation and has the requisite corporate power to carry on its business as now conducted.

Section 3.2. Authority. Buyer has all necessary corporate power and authority to enter into this Agreement and to consummate the transactions contemplated by this Agreement. The

execution and delivery of this Agreement by Buyer and the consummation by Buyer of the transactions contemplated hereby have been duly and validly authorized by all necessary corporate action on the part of Buyer and no other corporate proceedings on the part of Buyer are necessary to authorize this Agreement or to consummate the transactions contemplated by this Agreement. This Agreement has been duly executed and delivered by Buyer and, assuming due authorization, execution and delivery of this Agreement by Seller, constitutes a legal, valid and binding agreement of Buyer, enforceable in accordance with its terms against Buyer, except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws relating to creditors' rights generally and by general principles of equity.

Section 3.3. Consents and Approvals. The execution and delivery of this Agreement by Buyer and the consummation by Buyer of the transactions contemplated hereby require no consent, approval, authorization or filing with or notice to any Governmental Authority other than any actions or filings the absence of which are not reasonably likely to prevent, materially delay or materially impair the ability of Buyer to consummate the transactions contemplated by this Agreement.

Section 3.4. Non-Contravention. The execution, delivery and performance of this Agreement by Buyer and the consummation of the transactions contemplated by this Agreement do not and will not (with or without notice or lapse of time or both) (i) contravene, conflict with, or result in any violation or breach of any provision of the certificate of incorporation or bylaws of Buyer; (ii) assuming compliance with the matters referred to in Section 3.3, contravene, conflict with or result in a violation or breach of any Law or Order; or (iii) require any consent or approval under, violate, conflict with, result in any breach of any loss of any benefit under, or constitute a change of control or Default under, or result in termination or give to others any right of termination, vesting, amendment, acceleration or cancellation of any Contract to which Buyer is a party, or by which its properties or assets may be bound or affected, with such exceptions, in the case of each of clauses (ii) and (iii) of this section, as would not reasonably be expected to prevent, materially delay or materially impair the ability of Buyer to consummate the transactions contemplated by this Agreement.

Section 3.5. Brokers; Certain Expenses. No agent, broker, investment banker, financial advisor or other firm or Person, whose fees and expenses shall be paid solely by Buyer, is or shall be entitled to receive any brokerage, finders, financial advisors, transaction or other fee or commission in connection with this Agreement or the transactions contemplated hereby based upon agreements made by or on behalf of Buyer.

Section 3.6. Solvency. Neither Parent nor Buyer is entering into this Agreement with the actual intent to hinder, delay or defraud either present or future creditors. The Parent and Buyer shall be Solvent following the Closing. For purposes of this Agreement, "**Solvent**" means that, with respect to any Person, as of any date of determination, (a) the amount by which the "fair saleable value" of the assets of such Person will, as of such date, exceed the sum of (i) the value of all "liabilities of such Person, including contingent and other liabilities," as of such date, as such quoted terms are generally determined in accordance with applicable laws governing determinations of the insolvency of debtors, and (ii) the amount that will be required to pay the probable liabilities of such Person, as of such date, on its existing debts (including contingent and other liabilities) as such debts become absolute and mature, (b) such Person will not have, as of such date, an unreasonably small amount of capital for the operation of the businesses in which it

is engaged or proposed to be engaged following such date and (c) such Person will be able to pay its liabilities, as of such date, including contingent and other liabilities, as they mature.

Section 3.7. Offers to Offered Employees.

- (a) Buyer has extended offers of employment to Offered Employees that, to the Knowledge of Buyer, include base salaries or hourly wage levels and cash incentive compensation opportunities (as a percentage of base salary, but excluding any long-term incentive awards, equity or equity-based compensation) that are in the aggregate substantially comparable to those provided by Seller immediately prior to the date hereof.
- (b) Commencing on the Closing Date, Transferred Employees are eligible for those employee benefits in effect for similarly situated existing employees of Buyer.
- (c) Buyer's policy is to credit Transferred Employees for their length of service with the Seller for purposes of determining vacation eligibility in accordance with Buyer's vacation policy for similarly situated existing employees of Buyer.
- (d) Buyer has a 401(k) plan that accepts a "direct rollover" to such plan of the account balances of any Transferred Employees under Seller's 401(k) Plan, including outstanding plan loan notes, if such rollover is elected by such Transferred Employees and permitted by the Seller's 401(k) Plan in accordance with applicable Law and the terms of the Buyer's 401(k) plan.

Section 3.8. Independent Investigation; Non-Reliance. Buyer acknowledges and agrees that it has made its own inquiry and investigation into, and, based thereon, has formed an independent judgment concerning the Seller, the Business, the Acquired Assets and the Assumed Liabilities and the transactions contemplated by this Agreement and any other assets, rights or obligations to be transferred hereunder or pursuant hereto. Except for the specific representations and warranties expressly made by Seller in Article II: (a) Buyer acknowledges and agrees that (i) Seller and its Affiliates and representatives are not making and have not made any representation or warranty, expressed or implied, at law or in equity, in respect of the Business, the Acquired Assets and the Assumed Liabilities or any of Seller's or the Business's assets, liabilities, operations, prospects, or condition (financial or otherwise), including with respect to merchantability or fitness for any particular purpose of any assets, the prospects of the Business, the effectiveness or the success of any operations, or the accuracy or completeness of any confidential information memoranda, documents, projections, material or other information (financial or otherwise) regarding Seller, the Business, the Acquired Assets and the Assumed Liabilities furnished to Buyer or its representatives or made available to Buyer and its Affiliates or representatives in any "data rooms," "virtual data rooms," management presentations or in any other form in expectation of, or in connection with, the transactions contemplated hereby, or in respect of any other matter or thing whatsoever (except, in each case, to the extent addressed in a representation in this Agreement), and (ii) no officer, agent, representative or employee of Seller or its Affiliates and representatives has any authority, express or implied, to make any representations, warranties or agreements not specifically set forth in this Agreement; (b) Buyer specifically disclaims that it is relying upon or has relied upon any such other representations or warranties that may have been made by Seller or any of its Affiliates and representatives, and acknowledges and agrees that Seller and its Affiliates and representatives have specifically

disclaimed and do hereby specifically disclaim any such other representation or warranty made by any Person; (c) Buyer specifically disclaims any obligation or duty by Seller or any of its Affiliates or representatives to make any disclosures of fact not required to be disclosed pursuant to the specific representations and warranties set forth in Article II; and (c) Buyer is acquiring the Acquired Assets and assuming the Assumed Liabilities “as is where is” subject only to the specific representations and warranties set forth in Article II.

ARTICLE IV. COVENANTS.

4.1 Noncompete. During the period commencing on the Closing Date and ending on the second (2nd) anniversary of the Closing Date, Seller shall not, directly or indirectly, engage in, own, be employed by, consult with or otherwise render services to any Person who is engaged in any Competing Business; provided, however, that (i) the ownership of an equity interest of not more than one percent (1%) in a publicly traded entity that is engaged in a Competing Business, without more, shall not constitute a violation of this covenant.

4.2 Non-Solicit. During the period commencing on the Closing Date and ending on the third (3rd) anniversary of the Closing Date, Seller shall not, directly or indirectly solicit or induce any Transferred Employee to terminate his, her or its employment with Buyer; provided, however, that Seller shall not be precluded from soliciting, or taking any other action with respect to any Transferred Employee (i) whose employment ceased prior to commencement of employment discussions between such individual and Seller, (ii) who responds to solicitation not specifically targeted at any Transferred Employee or those employees of Buyer or any of its Affiliates (including by a search firm or recruiting agency), or (iii) who initiates discussions regarding such employment without any solicitation by Seller in violation of this Agreement.

4.3 Definitions. As used in this Section 4, the following terms have the following meanings:

- (a) **"Competing Business"** means directly or indirectly marketing or selling any Product within the Territory;
- (b) **"Product"** means any product or service substantially similar to those offered by the Business during the one (1) year prior to the Closing Date; and
- (c) **"Territory"** means the United States and foreign countries, in each case in which Seller has marketed or sold any Products at any time during the three-year period immediately prior to the date of this Agreement.

4.4 Injunction. Seller acknowledges and agrees that Buyer would be irreparably damaged if any of the provisions of this Section 4.1 and Section 4.2 are not complied with in accordance with their specific terms or are otherwise breached. Accordingly, it is agreed that Buyer shall be entitled to an injunction or injunctions to prevent breaches of Section 4.1 and Section 4.2 and shall have the right to specifically enforce Section 4.1 and Section 4.2 and their terms and provisions against Seller in addition to any other remedy to which Buyer may be entitled under this Agreement, at law or in equity.

4.5 Severability. It is the intent of the parties that each provision of Sections 4.1 through 4.5 be adjudicated valid and enforced to the fullest extent permissible under the laws and

public policies of each jurisdiction in which adjudication of the validity or enforcement of such section is sought. In furtherance of the foregoing, each provision of Sections 4.1 through 4.5 shall be severable from each other provision, and any provision of Sections 4.1 through 4.5 that is prohibited or unenforceable in any jurisdiction shall be subject to the following: (i) if the prohibited or unenforceable provision is contrary to or conflicts with any requirement of any statute, rule or regulation in effect in the jurisdiction, then the requirement shall be incorporated into, or substituted for, the prohibited or unenforceable provision to the minimum extent necessary to make the provision valid or enforceable; (ii) the Governmental Entity or arbitrator considering the matter is authorized to (or, if that Governmental Entity or arbitrator is unwilling or fails to do so, then the parties shall) amend the unenforceable provision to the minimum extent necessary to make the provision valid or enforceable, and the parties consent to the entry of an order amending the provision to that extent for that purpose; and (iii) if any unenforceable provision cannot be or is not reformed and made valid or enforceable under Sections 4.1 through 4.5, then the prohibited or unenforceable provision shall be ineffective in that jurisdiction to the minimum extent necessary to make the remainder of Sections 4.1 through 4.5 valid or enforceable in that jurisdiction. Any application of the foregoing provisions to any provision of Sections 4.1 through 4.5 shall not (x) affect the validity or enforceability of any other provision of such section or (y) prevent the prohibited or unenforceable provision from being adjudicated valid or enforced as written in any other jurisdiction.

4.6 Press Releases. Buyer may issue any press release or make any other public statement with respect to this Agreement or the transactions contemplated hereby.

4.7 Employment of Active Employees by Buyer.

- (a) On or before the Closing Date, Buyer shall extend an offer of employment, which may be conditioned upon the execution of Buyer's standard written employment terms, to each Business Employee set forth on Section 2.7(b) of the Disclosure Schedule, with such employees receiving offers being the "**Offered Employees**" and such employees who accept the offer of employment extended by Buyer or any of its Affiliates being the "**Transferred Employees**". The offer of employment extended by Buyer to an Offered Employee shall be effective upon the Closing Date.
- (b) For a period of one (1) year following the Closing Date, if Buyer terminates any Transferred Employee other than for cause or if Transferred Employee resigns due to Buyer's material alteration of the terms of employment extended by Buyer at Closing, Buyer shall provide such Transferred Employee a severance benefit in the form of one (1) week of salary continuation per full year of employment, measured from the first date of employment by Seller to the date of termination by Buyer and excluding any period in which such Transferred Employee was not employed by either the Seller or Buyer, subject to a minimum of two (2) weeks and a maximum of twenty-six (26) weeks of salary continuation.
- (c) Seller waives and agrees not to enforce any restrictive covenant or similar obligation between it or its Affiliates and any Transferred Employee that would

restrict in any way the Transferred Employee's ability to engage in the Business after Closing. Notwithstanding the foregoing, the parties acknowledge and agree that Seller and its Affiliates do not intend to and will not waive (i) any of their rights to confidentiality and (ii) any Transferred Employees' obligations of confidentiality and restrictions on the use of any confidential information.

- (d) Seller shall be solely responsible for COBRA Coverage for Seller employees (and their qualified beneficiaries) who do not become Transferred Employees and to Transferred Employees (and their covered dependents) with respect to all qualifying events under COBRA and any state applicable Law which occur before the Closing Date. Buyer shall be solely responsible for offering and providing any COBRA Coverage required with respect to any Transferred Employee (or other qualified beneficiary) who becomes covered by a group health plan sponsored or contributed to by Buyer or any of its Affiliates (each a "**Buyer Group Health Plan**") and who experiences a qualifying event on or following the Closing Date while covered under a Buyer Group Health Plan. For purposes hereof, "qualified beneficiary," "group health plan" and "qualifying event" shall have the meanings ascribed thereto in Section 4980B of the Code and the related regulations. For purposes of this subsection "**COBRA Coverage**" means continuation coverage required under Section 4980B of the Code and Part 6 of Title I of ERISA and any state applicable Law.
- (e) On or prior to the date hereof, Seller shall give notice of termination to all Offered Employees coincident with or following the offer of employment by Buyer to such Offered Employees.
- (f) For purposes of payroll Taxes with respect to all Transferred Employees, Buyer and Seller shall treat the Transactions as a transaction described in Treasury Regulation Sections 31.3121(a)(1)-1(b)(2) and 31.3306(b)(1)-1(b)(2).
- (g) Notwithstanding any other provision of this Agreement to the contrary, Seller and Buyer each hereby acknowledge and agree that all provisions contained in this Section 4.7 are included for the sole benefit of the parties, and that nothing in this Agreement, whether express or implied, (i) shall be treated as an amendment or other modification of any Benefit Plan, Employee Benefit Plan, agreement or other arrangement of Buyer or Seller, (ii) shall limit the right of Buyer to amend, terminate or otherwise modify any of their respective Employee Benefit Plans, agreements or other arrangements following the Closing Date, or (iii) shall create any third-party beneficiary or other right (A) in any other Person, including, without limitation, any current or former director, officer, employee or independent contractor of Seller or any participant in any of Buyer's Employee Benefit Plans, agreements or other arrangements or (B) to continued employment with Buyer or its Affiliates.

4.8 Payment of All Taxes Resulting from Sale of Assets.

- (a) Each of Seller and Buyer shall pay fifty percent (50%) in a timely manner all Taxes resulting from or payable in connection with the sale of the Acquired Assets pursuant to this Agreement, regardless of the Person on whom such Taxes are imposed by Laws.
- (b) Following Closing Buyer and Seller shall provide such assistance as may reasonably be requested in connection with the preparation of any Tax Return relating to the Business or the Acquired Assets and the conduct of any audit or other examination by any taxing authority or in connection with judicial or administrative proceedings relating to any Liability for Taxes relating to the Business or the Acquired Assets that relates to a taxable period ending on or before the Closing Date or a Straddle Period, (ii) retain for a period of at least three (3) years all records or other information that may be relevant to the preparation of any Tax Returns relating to the Business or the Acquired Assets, or the conduct of any audit or examination, or other Tax proceeding relating to the Business or the Acquired Assets that relates to a taxable period ending on or before the Closing Date or a Straddle Period, and (iii) retain for a period of at least three (3) years all relevant documents, including prior years' Tax Returns relating to the Business or the Acquired Assets, supporting work schedules and other records or information that may be relevant to such Tax Returns and shall not destroy or otherwise dispose of within such three year period any such records without the prior written consent of the other party. Any information obtained under this Section 4.8(b) shall be kept confidential, except as may be otherwise necessary in connection with the filing of Tax Returns or claims for refund or in conducting an audit or other proceeding.
- (c) In the case of any Straddle Period, the Taxes for such Straddle Period attributable to the portion of the Straddle Period ending on the Closing Date shall be determined as follows: (i) in the case of Taxes other than those described in clause (ii), the portion of such Taxes attributable to the period ending on the Closing Date shall be determined on a "closing of the books" basis, and (ii) in the case of all real property Taxes, personal property Taxes or similar ad valorem Taxes levied with respect to the Acquired Assets for any Straddle Period, whether imposed or assessed before or after the date of the Closing, the portion of such Taxes attributable to the period ending on the Closing Date shall be determined on a per diem basis based upon the number of days in the portion of such Straddle Period beginning before, and ending on, the date of the Closing. If the Closing shall occur before the tax rate for the taxable period that includes the Closing is fixed, the apportionment such Taxes shall be based upon the Tax rate for the immediately preceding fiscal period applied to the latest assessed valuation, and promptly after the new Tax rate is fixed for the taxable period that includes the date of the Closing, the apportionment of such Taxes shall be recomputed. If any Taxes subject to proration are paid by Buyer, on the one hand, or Seller, on the other hand, the proportionate amount of such Taxes paid (or in the event a refund of any portion of such Taxes previously paid is received, such refund) shall be paid by (or to) the other Person no fewer than five (5) days before the payment of such Taxes is due to the applicable Governmental Authority (or promptly the receipt of any such refund).

- (d) Under no circumstances shall this Section 4.8 be interpreted to (i) obligate Seller or Buyer to pay the income Taxes of any of its stockholders or (ii) create any rights, as a third-party beneficiary or otherwise, in favor of any Person other than Buyer or Seller.

4.9 Retention of and Access to Records. After the Closing Date, Buyer shall retain for a period consistent with Buyer's record-retention policies and practices those records of Seller delivered to Buyer. Seller shall have the right to retain copies of any and all such records for all legitimate purposes of Seller, including preparation of financial statements and tax returns. Buyer also shall provide reasonable access thereto, during normal business hours and on at least three (3) days' prior written notice, to enable them to prepare financial statements or tax returns or deal with tax audits. After the Closing Date, subject to applicable Law and for a period of one (1) year following the Closing Date, Seller shall provide Buyer reasonable access to records that are Excluded Assets, during normal business hours and on at least three (3) days' prior written notice, for any reasonable business purpose specified by Buyer in such notice.

4.10 Bulk Sales. Each of Seller and Buyer waive compliance with the provisions of bulk sales, bulk transfer, or similar Laws of any jurisdiction that may be applicable with respect to the sale of any or all of the Acquired Assets to Buyer.

ARTICLE V. INDEMNIFICATION.

5.1 Indemnification by Seller. From and after the Closing, Seller shall defend, indemnify and hold harmless Buyer and its respective directors, officers, employees and agents (collectively, "**Buyer Indemnified Parties**") from and against any and all claims, losses, damage, liabilities, actions (collectively, "**Losses**") incurred by Buyer Indemnified Parties that constitute, or arise out of or in connection with:

- (a) any breach by Seller of any representations by Seller in Article II of this Agreement;
- (b) any default by Seller in the performance or observance of any of its covenants or agreements under this Agreement; or
- (c) any Retained Liabilities.

No Buyer Indemnified Party shall have any claim for any Loss to the extent that such Loss would not have arisen but for any action expressly provided for or restricted by this Agreement or the other agreements entered into pursuant to this Agreement.

5.2 Survival of Representations and Warranties. Subject to the limitations and other provisions of this Agreement, the representations and warranties contained in this Agreement or in connection with the transactions contemplated in this Agreement shall survive the Closing until twelve (12) months after the Closing Date; provided, however, that none of the covenants made in this Agreement or in connection with the transactions contemplated by this Agreement shall survive the Closing Date other than those which by their terms contemplate performance after the Closing Date, and each such surviving covenant shall survive the Closing in accordance with its respective terms, but not to exceed the applicable statute of limitations in the event of a breach of such covenant; provided, further that, the representations and warranties in Section 2.1 (Organization), Section 2.2 (Authority), Section 2.16 (Brokers), (collectively, the "**Seller Fundamental Representations**"), Section 3.1 (Organization), Section 3.2 (Authority) and Section

3.5 (Brokers) (the “**Buyer Fundamental Representations**”) shall survive the Closing and terminate on the date that is thirty-six (36) months following the Closing Date.

5.3 Indemnification by Buyer and Parent. From and after the Closing, Buyer and Parent shall each indemnify and hold harmless Seller and its respective directors, officers, employees and agents (collectively, “**Seller Indemnified Parties**”) from and against any Losses incurred by Seller Indemnified Parties that constitute, or arise out of or in connection with:

- (a) any breach of any representations or warranties in Article III of this Agreement;
- (b) any default by Buyer or Parent in the performance or observation of any of its covenants or agreements under this Agreement; or
- (c) any Assumed Liabilities.

5.4 Certain Limitations; Exclusive Remedy. Notwithstanding anything to the contrary in this Agreement:

- (a) The indemnification provided for in Section 5.1 shall be subject to the following limitations:
 - (i) The aggregate amount of Losses including attorneys’ fees, costs and interest for which Seller shall be required to indemnify and hold harmless the Buyer Indemnified Parties under Section 5.1(a) shall not exceed \$350,000 for breach of representations and warranties that are not Seller Fundamental Representations (the “**Standard Cap**”). For breaches of Seller Fundamental Representations, the aggregate amount of Losses including attorneys’ fees, costs and interest for which Seller shall be required to indemnify and hold harmless the Buyer Indemnified Parties under Section 5.1(a) shall not exceed the Purchase Price (the “**Fundamental Cap**”).
 - (ii) Buyer acknowledges and agrees that, from and after Closing, its sole and exclusive remedy with respect to any and all matters (directly or indirectly) arising out of, relating to or connected with this Agreement (including the Disclosure Schedules and Exhibits), regardless of the legal theory under which such liability or obligation may be sought to be imposed, whether sounding in contract or tort, or whether at Law or in equity, or otherwise shall be sought against Section 5.1 herein.
 - (iii) Notwithstanding anything to the contrary in this Agreement, no Losses may be claimed under Section 5.1 by any Buyer Indemnified Party to the extent such Losses are included in the calculation of any adjustment to the Purchase Price pursuant to Section 1.6 and Section 1.7.
 - (iv) Seller shall not be liable under this Article V for any breaches or Losses that may arise as a result of Buyer’s continuing conduct of the Business following the Closing, even if such continuing conduct is substantially the same manner as Seller’s conduct prior to the Closing.
- (b) The indemnification provided for in Section 5.3 shall be subject to the following limitations:

- (i) The aggregate amount of Losses including attorneys' fees, costs and interest for which Buyer shall be required to indemnify and hold harmless the Seller Indemnified Parties under Section 5.3(a) shall not exceed the Standard Cap. For breaches of Buyer Fundamental Representations, the aggregate amount of Losses including attorneys' fees, costs and interest for which Buyer shall be required to indemnify and hold harmless the Seller Indemnified Parties under Section 5.3(a) shall not exceed the Fundamental Cap.
- (ii) Seller acknowledges and agrees that, from and after Closing, its sole and exclusive remedy with respect to any and all matters (directly or indirectly) arising out of, relating to or connected with this Agreement (including the Disclosure Schedules and Exhibits), regardless of the legal theory under which such liability or obligation may be sought to be imposed, whether sounding in contract or tort, or whether at Law or in equity, or otherwise shall be sought against Section 5.3 herein.
- (iii) Notwithstanding anything to the contrary in this Agreement, no Losses may be claimed under Section 5.3 by any Seller Indemnified Party to the extent such Losses are included in the calculation of any adjustment to the Purchase Price pursuant to Section 1.6 and Section 1.7.

ARTICLE 6. MISCELLANEOUS.

6.1 Entire Agreement; Assignment; Amendments. This Agreement (including the Disclosure Schedule and the exhibits to this Agreement) and the Confidentiality Agreement constitute the entire agreement and supersede all representations, warranties, agreements and understandings and all written agreements, in each case, both written and oral, prior to and contemporaneous with the date hereof between or on behalf of the parties, with respect to the subject matter hereof. This Agreement shall not be assigned by any party by operation of law or otherwise without the prior written consent of the other parties hereto. This Agreement may be amended only by a writing signed by each of the parties, and any amendment shall be effective only to the extent specifically set forth in that writing. Subject to the preceding sentences, this Agreement will be binding upon, inure to the benefit of, and be enforceable by, the parties and their respective successors and assigns. Parent shall cause Buyer to comply with all of Buyer's obligations under this Agreement.

6.2 Severability; Expenses; Further Assurances. If any term, condition or other provision of this Agreement is determined by a court of competent jurisdiction to be invalid, illegal or incapable of being enforced by any rule of Law or public policy, all other terms, conditions and provisions of this Agreement shall nevertheless remain in full force and effect so long as the economic or legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to any party. Upon such determination that any term or other provision is invalid, illegal or incapable of being enforced, the parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated by this Agreement be consummated as originally contemplated to the fullest extent possible. Except as otherwise specifically provided in this Agreement, each party shall be responsible for the expenses it may incur in connection with the negotiation, preparation, execution, delivery, performance and

enforcement of this Agreement. The parties shall from time to time do and perform any additional acts and execute and deliver any additional documents and instruments that may be required by Law or reasonably requested by any party to establish, maintain or protect its rights and remedies under, or to effect the intents and purposes of, this Agreement.

6.3 Enforcement of the Agreement; Jurisdiction; No Jury Trial.

- (a) The parties agree that irreparable damage would occur in the event that any of the provisions of this Agreement were not performed in accordance with their specific terms or were otherwise breached. It is accordingly agreed that the parties shall be entitled to an injunction or injunctions to prevent breaches or threatened breaches of this Agreement and to enforce specifically the terms and provisions of this Agreement exclusively in the Delaware Court of Chancery, or in the event (but only in the event) that such court does not have subject matter jurisdiction over such action or proceeding, in the United States District Court for the District of Delaware or another court sitting in the state of Delaware, this being in addition to any other remedy to which they are entitled at law or in equity. In addition, each of the parties to this Agreement irrevocably agrees that any legal action or proceeding with respect to this Agreement and the rights and obligations arising under this Agreement, or for recognition and enforcement of any judgment in respect of this Agreement and the rights and obligations arising under this Agreement brought by the other party to this Agreement or its successors or assigns shall be brought and determined exclusively in the Delaware Court of Chancery, or in the event (but only in the event) that such court does not have subject matter jurisdiction over such action or proceeding, in the United States District Court for the District of Delaware or another court sitting in the state of Delaware. Each of the parties to this Agreement hereby irrevocably submits with regard to any such action or proceeding for itself and in respect of its property, generally and unconditionally, to the personal jurisdiction of the aforesaid courts and agrees that it will not bring any action relating to this Agreement or any of the transactions contemplated by this Agreement in any court other than the aforesaid courts. Each of the parties to this Agreement hereby irrevocably waives, and agrees not to assert, by way of motion, as a defense, counterclaim or otherwise, in any action or proceeding with respect to this Agreement, (a) any claim that it is not personally subject to the jurisdiction of the above-named courts for any reason other than the failure to serve in accordance with this Section 6.3; (b) any claim that it or its property is exempt or immune from jurisdiction of any such court or from any legal process commenced in such courts (whether through service of notice, attachment prior to judgment, attachment in aid of execution of judgment, execution of judgment or otherwise); and (c) to the fullest extent permitted by the Law, any claim that (i) the suit, action or proceeding in such court is brought in an inconvenient forum; (ii) the venue of such suit, action or proceeding is improper; or (iii) this Agreement, or the subject matter of this Agreement, may not be enforced in or by such courts. Each of Seller and Buyer hereby agrees that service of any process, summons, notice or document by U.S. registered mail to the respective addresses set forth in Section 6.4 shall be effective service of process for any proceeding arising out of, relating to or in connection with this Agreement or the transactions contemplated hereby.

- (b) EACH PARTY TO THIS AGREEMENT HEREBY IRREVOCABLY AND UNCONDITIONALLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY LAW, ANY RIGHT SUCH PARTY MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY SUIT, ACTION OR OTHER PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF, UNDER, RELATING TO OR IN CONNECTION WITH THIS AGREEMENT, OR THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT. EACH PARTY HERETO CERTIFIES THAT (I) NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY WOULD NOT, IN THE EVENT OF ANY ACTION, SUIT OR PROCEEDING, SEEK TO ENFORCE THE FOREGOING WAIVER, (II) EACH PARTY UNDERSTANDS AND HAS CONSIDERED THE IMPLICATIONS OF THIS WAIVER, (III) EACH PARTY MAKES THIS WAIVER VOLUNTARILY AND (IV) EACH PARTY HAS BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION 6.3(b).

6.4 Notices. Any and all notices or other communications or deliveries required or permitted to be provided hereunder shall be in writing and shall be deemed given and effective on the earliest of (a) upon confirmation of receipt by the addressee, if such notice or communication is delivered via facsimile or e-mail to the facsimile telephone number or e-mail address, as applicable, specified in this Section 6.4, (b) on the fifth (5th) Business Day after dispatch by registered or certified mail or (c) on the next Business Day if transmitted by a national overnight courier, in each case, as follows (or at such other address for a party as shall be specified by like notice):

If to Parent or Buyer, to:

OTC Markets Group Inc.
300 Vesey Street, 12th Floor
New York, NY 10282
Email: legal@otcmarkets.com
Attention: Office of the General Counsel

with a copy (which will not constitute notice to Buyer) to:

Bressler, Amery & Ross, P.C.
1100 Connecticut Avenue, NW, Suite 810
Washington, District of Columbia 20036
Facsimile: 301.576.5923
Email: [REDACTED]
Attention: [REDACTED]

If to Seller, to:

Donnelley Financial, LLC
35 West Wacker Drive
Illinois, Chicago 60601
Email: [REDACTED]

Attention: [REDACTED]

with a copy (which will not constitute notice to Seller) to:

Sidley Austin LLP
One South Dearborn Street
Chicago, Illinois 60603
Email: [REDACTED]
Attention: [REDACTED]

or to such other address as the Person to whom notice is given may have previously furnished to the others in writing in the manner set forth above. Rejection or other refusal to accept or the inability for delivery to be effected because of changed address of which no notice was given shall be deemed to be receipt of the notice as of the date of such rejection, refusal or inability to deliver.

6.5 Governing Law. This Agreement, and any dispute arising out of, relating to, or in connection with this Agreement, shall be governed by and construed in accordance with the Laws of the State of Delaware, without giving effect to any choice or conflict of Law provision or rule (whether of the State of Delaware or of any other jurisdiction) that would cause the application of the Laws of any jurisdiction other than the State of Delaware.

6.6 Headings. The descriptive headings in this Agreement are inserted for convenience only and are not intended to be part of or to affect the meaning or interpretation of this Agreement.

6.7 Parties in Interest. This Agreement shall be binding upon and inure solely to the benefit of each party hereto, and nothing in this Agreement, express or implied, is intended to confer upon any other Person any rights or remedies of any nature whatsoever under or by reason of this Agreement.

6.8 Exclusive Remedies. Except: (a) for any equitable remedies which the parties may pursue; and (b) for enforcement actions of any kind or nature regarding the terms and provisions of Article IV, the indemnification under such Article V shall be the parties sole and exclusive remedy, each against another, with respect to matters arising under this Agreement. The parties waive and release any other rights, remedies, causes of action or claims of any kind or nature arising under this Agreement.

6.9 Counterparts. This Agreement may be executed in two (2) or more counterparts, each of which shall be deemed to be an original, but all of which, taken together, shall constitute one and the same agreement. At the Closing, signature pages of counterparts may be exchanged by facsimile or by electronic transmittal of scanned images thereof, in each case subject to appropriate customary confirmations in respect thereof by the signatory for the party providing a facsimile or scanned image and that party's closing counsel.

6.10 Certain Definitions. For purposes of this Agreement, the following terms shall have the following meanings:

“**Acquired Assets**” has the meaning set forth in Section 1.1.

“Affiliate” means, with respect to any Person, any other Person which directly or indirectly controls, is controlled by, or is under common control with such Person. For the purposes of this definition, “control” (including the terms “controlled by” and “under common control with”), with respect to the relationship between or among two or more Persons, means the possession, directly or indirectly, of the power to direct or cause the direction of the affairs or management of a Person, whether through the ownership of voting securities, by agreement or otherwise.

“Agreed Accounting Principles” has the meaning set forth in Section 1.6(a).

“Agreement” has the meaning set forth in the preamble of this Agreement.

“Anticorruption Laws” has the meaning set forth in Section 2.14.

“Assignment and Assumption Agreement” has the meaning set forth in Section 1.11(a)(ii).

“Assumed Liabilities” has the meaning set forth in Section 1.3.

“Bill of Sale” has the meaning set forth in Section 1.11(a)(i).

“Business” has the meaning set forth in the recitals.

“Business Day” means all days of the week except Saturday, Sunday and any other days which are declared federal bank holidays in the state of New York.

“Business Employee” has the meaning set forth in Section 2.7(a).

“Buyer” has the meaning set forth in the preamble of this Agreement.

“Buyer Fundamental Representations” has the meaning set forth in Section 5.2.

“Buyer Group Health Plan” has the meaning set forth in Section 4.6(c).

“Buyer Indemnified Parties” has the meaning set forth in Section 5.1.

“Clients” has the meaning set forth in Section 6.12(a).

“Closing” has the meaning set forth in Section 1.10.

“Closing Date” has the meaning set forth in Section 1.10.

“Closing Net Working Capital” has the meaning set forth in Section 1.7.

“Closing Statement” has the meaning set forth in Section 1.7(a).

“COBRA Coverage” has the meaning set forth in Section 4.7(d).

“Code” means the Internal Revenue Code of 1986, as amended, and the rules and regulations promulgated thereunder.

“Confidentiality Agreement” means that certain Mutual Confidentiality Agreement, dated March 21, 2022, by and between Seller and Parent.

“Contracts” has the meaning set forth in Section 1.1(c).

“Counsel” has the meaning set forth in Section 6.12(a).

“Current Assets” means the sum of the Acquired Assets that are current assets, including, accounts receivable, inventory, prepaid expenses, prepared in accordance with the books and records of the Seller.

“Current Liabilities” means the sum of Assumed Liabilities that are current liabilities, including accounts payable, deferred revenue, accrued expenses, prepared in accordance with the books and records of the Seller. Current Liabilities shall not include Business Employees’ accrued salaries, wages or benefits.

“Deal Communications” has the meaning set forth in Section 6.12(b).

“Default” means any breach or violation of, default under, contravention of, or conflict with, any contract, Law, Order, or Permit, any occurrence of any event that with the passage of time or the giving of notice or both would constitute a breach or violation of, default under, contravention of, or conflict with, any contract, Law, Order, or Permit, or any occurrence of any event that with or without the passage of time or the giving of notice would give rise to a right of any Person to exercise any remedy or obtain any relief under, terminate or revoke, suspend, cancel, or modify or change the current terms of, or renegotiate, or to accelerate the maturity or performance of, or to increase or impose any liability under, any contract, Law, Order, or Permit.

“Delivery Date” has the meaning set forth in Section 1.7(a).

“Delivery Period” has the meaning set forth in Section 1.7(a).

“Disclosure Schedules” means the Disclosure Schedules delivered by Seller and Buyer concurrently with the execution and delivery of this Agreement.

“Environmental Law” has the meaning set forth in Section 2.11.

“ERISA” has the meaning set forth in Section 2.6(a).

“Excluded Assets” has the meaning set forth in Section 1.2.

“FCPA” has the meaning set forth in Section 2.14.

“Financial Statements” has the meaning set forth in Section 2.4(a).

“Fundamental Cap” has the meaning set forth in Section 5.4(a)(i).

“GAAP” means United States generally accepted accounting principles and practices in effect from time to time applied consistently throughout the periods involved.

“Governmental Authority” has the meaning set forth in Section 2.3(b).

“Hazardous Substance” has the meaning set forth in Section 2.11.

“Independent Accountant” has the meaning set forth in Section 1.7(c).

“Intellectual Property” means all intellectual property rights, including: (a) patents, (b) trademarks, trade names, trade dress, corporate names, domain names, service marks and other source indicators, (c) copyrights and copyrighted works, (d) trade secrets, know-how, methods and processes and (e) any applications, registrations, continuations, continuations-in-part, reexaminations, reissues and extensions related to any of the foregoing.

“Interim Financial Statements” has the meaning set forth in Section 2.4(a).

“IRS” means the Internal Revenue Service of the United States of America.

“Knowledge” means, when referring to the ‘knowledge’ of Seller, the actual (but not constructive or imputed) knowledge that any of, of Seller’s officers listed in Section 6.10 of the Disclosure Schedule has (without independent investigation) as of the date hereof.

“Law” has the meaning set forth in Section 2.10.

“Liability” means, with respect to any Person, any liability or obligation of such Person of any kind, character or description, whether known or unknown, absolute or contingent, accrued or unaccrued, disputed or undisputed, liquidated or unliquidated, secured or unsecured, joint or several, due or to become due, vested or unvested, executory, determined, determinable or otherwise, and whether or not the same is required to be accrued on the financial statements of such Person.

“Lien” means, with respect to any property or asset, all pledges, liens, mortgages, charges, encumbrances, hypothecations, options, rights of first refusal, rights of first offer and security interests of any kind or nature in respect of such property or asset.

“Losses” has the meaning set forth in Section 5.1.

“Material Adverse Effect” means any state of facts, change, development, event, effect, condition, occurrence, action or omission that, individually or in the aggregate, is reasonably expected to result in a material adverse effect on the business, assets, properties, financial condition, results of operations or prospects of the Business operated by Seller, taken as a whole,

or prevent, materially impede or materially delay the consummation by Seller of the transactions contemplated by this Agreement.

“Material Contract” has the meaning set forth in Section 2.13(a).

“Net Adjustment Amount” means an amount, which may be positive or negative, equal to the Closing Net Working Capital as finally determined pursuant to Section 1.67 minus the Preliminary Net Working Capital as set forth on the Preliminary Closing Statement.

“Net Working Capital” means Current Assets less Current Liabilities. An illustrative example of the calculation of the Net Working Capital is set forth on Exhibit F.

“Notice of Disagreement” has the meaning set forth in Section 1.7.

“Offered Employees” has the meaning set forth in Section 4.7(a).

“Order” has the meaning set forth in Section 2.10.

“Parent” has the meaning set forth in the preamble of this Agreement.

“Permit” has the meaning set forth in Section 2.10.

“Permitted Liens” means (i) Liens for Taxes not yet due and payable or that are being contested in good faith and by appropriate proceedings; (ii) mechanics’, carriers’, workmen’s, repairmen’s, materialmen’s or other like liens arising or incurred in the ordinary course of business; (iii) Liens or security interests that arise or are incurred in the ordinary course of business relating to obligations not yet due on the part of Seller or secure a liquidated amount that are being contested in good faith; (iv) pledges or deposits to secure obligations under workers’ compensation Laws or similar Laws or to secure public or statutory obligations; (v) pledges and deposits to secure the performance of bids, trade contracts, leases, surety and appeal bonds, performance bonds and other obligations of a similar nature, in each case, in the ordinary course of business; and (vi) any other imperfections of title, if any, that individually or in the aggregate, have not had, and would not reasonably be expected to have, a Material Adverse Effect.

“Person” means an individual, partnership, corporation, business trust, limited liability company, limited liability partnership, joint stock company, trust, unincorporated association, joint venture or other entity or a Governmental Authority.

“Pre-Closing Engagements” has the meaning set forth in Section 6.12(a).

“Preliminary Closing Statement” has the meaning set forth in Section 1.6(a).

“Preliminary Net Working Capital” has the meaning set forth in Section 1.6(a).

“Privileged Deal Communications” has the meaning set forth in Section 6.12(b).

“Proposed Allocation Schedule” has the meaning set forth in Section 1.8.

“Purchase Price” has the meaning set forth in Section 1.5.

“Related Party Transactions” has the meaning set forth in Section 1.2(c).

“Representatives” means with respect to a Person, any officer, director or employee of such Person or any consultant, investment banker, attorney, accountant, agent or other advisor or representative of such Person.

“Retained Liabilities” has the meaning set forth in Section 1.4.

“Review Period” has the meaning set forth in Section 1.7(b).

“Seller” has the meaning set forth in the preamble of this Agreement.

“Seller Fundamental Representations” has the meaning set forth in Section 5.2.

“Seller Indemnified Parties” has the meaning set forth in Section 5.3.

“Solvent” has the meaning set forth in Section 3.6.

“Standard Cap” has the meaning set forth in Section 5.4(a)(i).

“Target Net Working Capital” means zero dollars (\$0.00).

“Tax” or **“Taxes”** have the meaning set forth in Section 2.9.

“Tax Returns” has the meaning set forth in Section 2.9.

“Transferred Employees” has the meaning set forth in Section 4.7(a).

“Transferred IP” has the meaning in Section 1.1(b).

“Transition Services Agreement” has the meaning in Section 1.10(a)(iv).

“Working Capital Principles” has the meaning set forth in Section 1.6(a).

“XPE Business” means with respect to XPE, the source code used in the creation, validation and production of standardized XBRL data disclosure.

6.11 Interpretation. The words “hereof,” “herein,” “hereby,” “herewith” and words of similar import shall, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement, and references to article, section, paragraph, exhibit and disclosure schedule are to the articles, sections, paragraphs, exhibits and disclosure schedules of this Agreement unless otherwise specified. Whenever the words “include,” “includes” or “including” are used in this Agreement they shall be deemed to be followed by the words

“without limitation.” The words describing the singular number shall include the plural and vice versa. The phrases “the date of this Agreement,” “the date hereof,” and terms of similar import, shall be deemed to refer to the date set forth in the preamble to this Agreement. Any reference in this Agreement to a date or time shall be deemed to be such date or time in New York City, unless otherwise specified. The parties have participated jointly in the negotiation and drafting of this Agreement. In the event an ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by the parties and no presumption or burden of proof shall arise favoring or disfavoring any Person by virtue of the authorship of any provision of this Agreement.

6.12 Deal Communications.

- (a) Recognizing that Sidley Austin LLP (“**Counsel**”) has acted as legal counsel to Seller and the Business (collectively, the “**Clients**”) for various matters prior to Closing, including in connection with this Agreement and the transactions contemplated hereby (collectively, the “**Pre-Closing Engagements**”), and in that connection not as counsel for any other Person, including Buyer or its Affiliates, only the Clients shall be considered clients of Counsel for purposes of the Pre-Closing Engagements. If Seller or its applicable Affiliate so desires, and without the need for any consent or waiver by Buyer or the Business, Counsel shall be permitted to represent Seller after the Closing in connection with any matter, including anything related to the transactions contemplated hereby or any disagreement or dispute in connection therewith or any other matter relating to a Pre-Closing Engagement. Without limiting the generality of the foregoing, after the Closing, Counsel shall be permitted to represent Seller and any of its Affiliates or representatives, in connection with any negotiation, transaction or Dispute with Buyer, the Business or any of its Affiliates or representatives relating to any Pre-Closing Engagements, including indemnification claims or any other matter related to this Agreement, any other Transaction Agreement or the transactions contemplated hereby or thereby. Buyer, on behalf of itself and its Affiliates, hereby consents to the disclosure to Seller and its Affiliates and representatives by Counsel of any information learned by Counsel in the course of its representation of the Clients, whether or not such information is subject to the attorney-client privilege or Counsel’s duty of confidentiality and whether such disclosure is made before or after the Closing.
- (b) Buyer, on behalf of itself and its Affiliates further agrees that all communications in any form or format whatsoever between or among Counsel, Seller or the Business, or any of their respective Affiliates or representatives, that relate in any way to the negotiation, documentation and consummation of the transactions contemplated by this Agreement or any dispute arising under this Agreement (collectively, the “**Deal Communications**”) shall be deemed to be retained and owned by Seller, shall be controlled by Seller and shall not pass to or be claimed by the Business, Buyer or any of their respective Affiliates, and none of the Business, Buyer or any of its Affiliates shall have access to any such Deal Communications, or to the files of Counsel relating thereto. Buyer, on behalf of itself and its Affiliates irrevocably waives any right it may have to discover or obtain information or documentation relating to the representation of the Clients by Counsel relating to any Deal Communications or any other matter related to this Agreement, any other Transaction Agreement or the

transactions contemplated hereby or thereby. Without limiting the generality of the foregoing, notwithstanding that the Business may be a client in the Pre-Closing Engagements, from and after the Closing, (i) Seller shall be the sole holder of the attorney-client privilege with respect to Deal Communications that are attorney-client privileged (the “**Privileged Deal Communications**”) and the expectation of client confidence relating to any Deal Communications, and none of Buyer, the Business or any of its respective Affiliates shall be a holder thereof, (ii) to the extent that files of Counsel in respect of the transactions contemplated by this Agreement would constitute property of the Clients, only Seller shall hold such property rights, and (iii) Counsel shall have no duty whatsoever to reveal or disclose any Deal Communications or such files to Buyer, the Business or any of its Affiliates by reason of any attorney-client relationship between Counsel and the Business or otherwise. Notwithstanding the foregoing, if the Business, Buyer or any of its Affiliates unintentionally or inadvertently come into possession of Privileged Deal Communications and in the event that a dispute arises between the Business, Buyer or any of its respective Affiliates, on the one hand, and a third party other than Seller or any of its Affiliates, on the other hand, the Business may assert the attorney-client privilege to prevent the disclosure of the Privileged Deal Communications to such third party. In the event that Buyer, the Business or any of its Affiliates are legally required by a Governmental Authority or applicable Law or otherwise to access, obtain or disclose a copy of all or a portion of the Deal Communications, Buyer shall, as promptly as reasonably possible, notify Seller in writing so that the Seller can seek (at its sole expense) a protective order and Buyer shall, and shall cause the Business and its Affiliates to, use reasonable best efforts to assist therewith.

- (c) Seller on behalf of itself and its Affiliates and Buyer on behalf of itself and its Affiliates (i) hereby consent to the foregoing arrangements and waive (and agree to cause their respective Affiliates) any actual or potential conflict of interest that may be involved in connection with any representation by Counsel permitted hereunder. Buyer shall not seek or having, and shall cause its Affiliates to refrain from seeking or having, Counsel disqualified from any such representation based on the prior representation of the Business by Counsel.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, each of the parties has caused this Agreement to be executed on its behalf by its officers thereunto duly authorized, all at or on the date and year first above written.

BUYER:

EDGAR ONLINE LLC

a Delaware limited liability company

By: _____
Name: _____
Title: _____

PARENT:

OTC MARKETS GROUP INC.

a Delaware corporation

By: _____
Name: Cromwell Coulson
Title: President and CEO

DONNELLEY FINANCIAL, LLC

a Delaware limited liability company

By: _____
Name: _____
Title: _____

Exhibits

Exhibit A – Reserved

Exhibit B – Bill of Sale

Exhibit C – Assignment and Assumption Agreement

Exhibit D – Transition Services Agreement

Exhibit E – Wire Transfer Instructions

Exhibit F – Net Working Capital Example